



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

FEB 14 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9338
(FOURTH REVISION)

EXPIRATION DATE: August 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: Honeywell International, Inc.
(Formerly AlliedSignal, Inc.)
Morristown, New Jersey
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of a class 8 material in DOT Specification 106A500W and 110A500W multi-unit tank car tanks without a gas tight valve protection housing, and provides no relief other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107, and 171-180
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.102(c)(3) Special Provision B46 and B71.
5. BASIS. This exemption is based on Honeywell International Inc.'s application dated December 17, 1999, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Hydrogen fluoride, anhydrous	8	UN 1052	I

7. SAFETY CONTROL MEASURES.

a. PACKAGING - Packagings prescribed are DOT Specification 106A500X and 110A500W multi-unit tank car tanks equipped with a metal valve protection housing that is not gas tight and has not been approved by the Bureau of Explosives. The serial number of each multi-unit tank car tank must be on file with the Associate Administrator for Hazardous Materials Safety (AAHMS) prior to the first shipment.

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b. TESTING - Tanks must be retested as specified for DOT Specification 106A500X and 110A500W multi-unit tank car tanks.

c. MARKING - Multi-unit tank car tanks must be marked, "DOT-E 9338" on both sides near the middle, in letters and numerals at least 4 inches high, on a contrasting background.

d. No new construction is authorized.

8. SPECIAL PROVISIONS.

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel, motor vehicle, and rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration is to be notified if any unusual incident such loss of product from any valves temporarily attached for the loading process. This notification should be directed to:

Federal Railroad Administration
Office of Safety Assurance & Compliance
RRS-12, Mail Stop 25
1120 Vermont, N.W.
Washington, D.C. 20590
(202) 493-6247 or 493-6229

b. A current copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire, or accident.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101, et seq.

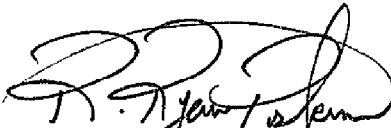
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:


For Robert A. McGuire
Acting Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of Exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-5046.

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